

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabile-D excess burden	Gross outcome error	Total expenditures
American	0.2083	0.2183	0.0193	0.3351	0.1830
Trial Fee-Shifting	0.1764	0.1654	0.0182	0.2783	0.1237
Complete Fee-Shifting	0.1982	0.1956	0.0157	0.3144	0.1653